

ENDORSEMENT HO-0710 (ED. 11-23)

Definitions and General Conditions Amendment

Form Number: HO-0710

Edition Date: 11-23

Policy Line: homeowners

Effective Date: November 1, 2023

Supersedes: HO-0710 ed. 07-19

ATTACHING TO AND FORMING PART OF THE POLICY SHOWN IN THE DECLARATIONS. ALL OTHER TERMS AND CONDITIONS REMAIN UNCHANGED.

1. PURPOSE AND SCOPE

This endorsement replaces the definitions section of the base homeowners wording and supplies the meanings used by every other endorsement attached to this policy line. Where another endorsement uses a term defined here, the meaning given here controls, and any inconsistent definition in the base wording is deleted.

2. DEFINITIONS

2.1 Sudden and accidental means an event which is both abrupt in onset and unintended by the insured, and which occurs at an identifiable point in time. An event is not sudden and accidental merely because its consequences were unexpected. A process which develops gradually over a period of fourteen (14) days or more is not sudden and accidental however unintended its result, and is adjudicated as seepage.

2.2 Supply line means any pipe, hose, tube, fitting or connector which conveys water under mains pressure to a fixture, appliance or system within the described dwelling, up to and including the shut-off valve serving that fixture, appliance or system. A supply line does not include a waste, soil or drainage pipe, which is a drain line.

2.3 Seepage means the escape of water in small quantities over a continuous or repeated period, whether or not the escape is visible and whether or not the insured was aware of it. Seepage is distinguished from a sudden and accidental discharge by its duration and not by the volume of water escaping.

2.4 Cosmetic damage means physical damage to a surface which alters its appearance without reducing the ability of that surface to perform its intended function. In the case of roof surfacing, the intended function is the shedding of water.

2.5 Described dwelling means the building shown as the insured location in the declarations, including attached structures and permanently installed fixtures, but excluding other structures set apart from the dwelling by clear space.

2.6 Policy year means the twelve month period commencing on the inception date shown in the declarations, or on any anniversary of that date.

3. GENERAL CONDITIONS

3.1 Where two or more endorsements attached to this policy address the same loss, the endorsement bearing the later edition date controls to the extent of the inconsistency.

3.2 Where an exclusion in one endorsement refers a loss to another form, coverage for that loss is determined solely under the form referred to, and the referring endorsement neither grants nor restricts coverage for it.

3.3 A deductible stated in an endorsement replaces the all-perils deductible for losses under that endorsement. Where a loss engages two endorsements carrying different deductibles, the higher deductible applies, and only once.

3.4 The burden of showing that a loss falls within a coverage grant rests on the insured. The burden of showing that an exclusion applies rests on us.

END OF FORM HO-0710 ED. 11-23.